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Policyholder Position – Waterproofing Redundancy, Regulatory Context and Failure Risk

1 message

Nicholas Scarr <nscarr@quantlogic.com> 8 January 2026 at 14:25
To: Andy Lyne <Andy.Lyne@qlaims.com>, Claims <Claims@qlaims.com>, Louisa Scarr <scarrlouisa@gmail.com>

Hi Andy,

Thank you for forwarding Garrett's email of 6 January. I would like to respond to the points raised and would be grateful if you could relay the substance of the below to him as part of your discussions.

Regulatory and Industry Context

The requirement for redundancy, backup power, alarms, and monitoring in waterproofing systems does not arise arbitrarily, nor is it a matter of preference. These measures are **repeatedly articulated across the industry and regulatory environment precisely because of bitter experience** where systems have failed when they were most needed.

Time and again, post-incident investigations identify the same root causes:

- loss of mains power with no effective backup,
- mechanical pump failure or blockage with no secondary pump available,
- systems continuing to fail unnoticed because no alarm or monitoring was in place,
- reliance on surcharged drainage during flood conditions.

It is for these reasons that such measures are now regarded as **integral to the proper functioning of a waterproofing scheme**, not optional additions. To characterise them as "betterment" misunderstands why they exist.

Pump Capacity, Redundancy and the "Overwhelmed" Argument

Garrett suggests that in a severe flooding event the pumping system would be "beyond capacity", that there would be "nothing to pump into", and that backup power, multiple pumps and controls therefore have limited value.

That reasoning is fundamentally flawed.

Severe or adverse conditions are not a justification for removing resilience; they are the very reason resilience is required. It would be an absurd position to suggest that a safety-critical system should be simplified or weakened precisely because the conditions in which it must operate are challenging.

More importantly, the argument misrepresents how the system functions:

- The pumping strategy is designed to **actively lift and remove sewage-contaminated water away from the building** to a remote discharge point approximately **40–50 feet up the garden**, thereby avoiding reliance on local drainage that may be surcharged.
- Multiple pumps are included because pumps fail for many foreseeable reasons: mechanical breakdown, blockage, electrical fault, wear, or maintenance issues.
- Battery backup exists because **loss of power during flooding is a known and common occurrence**, not an exceptional one.
- Alarms and monitoring exist because one of the most frequent causes of major loss is not pump failure itself, but the **absence of timely warning that a failure has occurred**.

It would be an absurd outcome if a pump failed — for any of the many well-documented reasons pumps fail — and the system provided no alert, allowing flooding to occur unnoticed. Equally, it would be perverse to design a system that fails completely because a single component stops working, when that failure mode is entirely foreseeable.

External Sump Chamber and Discharge Strategy

The external sump chamber and pumped discharge route are central to the risk mitigation strategy. Without them, the system remains exposed to surcharge in the local drainage or sewer network — the very mechanism that has already caused repeated flooding at this property.

This is not an enhancement. It is a direct and proportionate response to the known way the property floods.

Rear Door ACO / Linear Drain – Without Prejudice

Garrett has also queried the proposed ACO / linear drain at the rear elevation.

To be clear, this item is **not conceded**. Given the patio falls towards the property and the observed flooding behaviour, I continue to regard it as a sensible and proportionate precaution, and there is legal precedent supporting such measures in reinstatement following flooding.

However, **on a strictly without-prejudice basis**, and solely to avoid further delay, I am prepared for this item to be **parked temporarily** so that agreement can be reached on the core waterproofing measures and, critically, so that the builders can be mobilised. This point is expressly reserved for later discussion.

Non-Negotiable Core Elements

While I am prepared to show flexibility on peripheral items, I cannot agree to any compromise on the fundamental integrity of the waterproofing system.

In particular, I cannot agree to:

- removal or reduction of battery backup,
- replacement of multiple pumps with a single-pump solution,
- removal or downgrading of alarms, telemetry or monitoring,
- removal of the external sump chamber or pumped discharge strategy.

These elements are not betterments. They are integral to preventing well-known, well-documented failure modes. Removing them would knowingly introduce single points of failure into a system designed to protect against a clearly established risk.

Objective

My objective remains pragmatic and constructive: **to resolve these points swiftly and allow works to commence without further delay**, while ensuring that the reinstatement does not embed avoidable weaknesses that history shows will lead to failure.

Thank you, as always, for your assistance in helping move this forward.

Kind regards,

Nicholas

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